

**MINUTES
ANNUAL GENERAL MEETING**

CARLETON CONDOMINIUM CORPORATION NO. 276

**Thursday, May 19, 2011
(Greenboro Community Centre, 363 Lorry Greenburg Drive Ottawa, ON)**

Present: Directors: Carol Wu, President
Arthur Etkin, Vice President
Mitch Savoie, Treasurer/Secretary

Property Manager: Stefan Novak

Auditor: Nicholas Ralph

Recording Secretary: Heather Clark

Call to Order

Ms. Carol Wu, President called the meeting to order at 7:00 p.m.

CARRIED

1. Appointment of Scrutineers

Ms. Betty Flack, #453 Sandhamn Private volunteered to be a scrutineer for this evening's meeting.

2. Introduction of the Head Table

Ms. Carol Wu introduced the Head Table consisting of the Board of Directors, the Property Manager, the Auditor Mr. Nicholas Ralph and Heather Clark, the Recording Secretary.

3. Proof of Notice of Meeting

Ms. Carol Wu, President had read the notice of the meeting indicating that proper notice was given to conduct the Annual General Meeting.

CARRIED

4. Establish Presence of a Quorum

A quorum was established with a total of 25 units represented (12 in person and 13 by proxy); therefore the meeting of the owners of Carleton Condominium Corporation No. 276 was duly constituted to conduct the business of the Annual General Meeting.

5. Approval of Minutes of the Annual General Meeting of July 13, 2010

Ms. Betty Flack, #453 Sandhamn Private motioned and Ms. Janet Buske-Wichser, #501 Sandhamn Private seconded to approve and accept the minutes from the Annual General Meeting held on July 13, 2010.

There was no discussion with regard to the minutes and therefore all homeowners present, agreed to accept the motion and carried the minutes unanimously.

CARRIED

6. Auditor's Financial Report

The President turned the meeting over to the Corporation's Auditor, Mr. Nicholas Ralph, who reviewed the financial statements for the year ending December 31, 2010. Mr. Ralph

presented the Auditor's Report, Balance Sheet, Statement of Operating Fund and Fund Balance, Statement of Reserve Fund and Fund Balance, Statement of Cash Flows and the Notes to the Financial Statements.

Mr. Ralph noted that the repairs and maintenance expenditures contributed to a large increase in the budget this past year as the actual amounts came in about twice the amount that was budgeted.

Mr. Ralph noted that when developing a reserve fund study it could be very difficult to predict what would happen in the future. He highlighted that there was a planned expenditure of \$60,000 for asphalts but there resulted in no work necessary this year. Although, approximately \$50,000 was spent on patio doors that had not been reflected in the study. As the Condominium Act dictated, a reserve fund study update was required every three years and therefore one had been prepared for this year. Mr. Ralph's professional opinion was that the reserve fund was relatively healthy right now but you never knew what might happen in the future.

Ms. Janice Forsythe, #490 Sandhamn Private wondered why the interest was budgeted so high. In 2008 when the reserve fund study was completed, the person that prepared the study anticipated that interest rates were going to be higher than they actually were.

7. Approval to receive the Auditor's Financial Report

Ms. Emily Blinn, #417 Sandhamn Private motioned and Mr. Chris Dunn, #450 Sandhamn Private seconded to receive the Auditors Financial Report. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

8. Appointment of Auditor

Ms. Janet Buske-Wichser, #501 Sandhamn Private motioned and Mr. Chris Saindon, #414 Sandhamn Private seconded to appoint Mr. Nicholas Ralph, Chartered Accountant as the Auditor for the fiscal year January 1, 2011 to December 31, 2011. There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously.

CARRIED

9. President's Report

Ms. Carol Wu presented her President's Report.

- New signs had been put up in the Visitor's Parking lots with clearer messages to ensure that owners and/or tenants did not park their vehicles there. The Board would like to thank the owners and/or tenants for abiding with these regulations. Unfortunately, there were still some owners and tenants that were violating these regulations.
- The signs regarding trespassing on our property at the ends of Sandhamn Private had also been replaced since the old signs had been damaged and were in poor shape.
- We had some flooding issues again last summer and the defective back-flow valves in Units 414 and 420 had to be replaced. Last month, we had the clean-out plugs in the units that had these valves cleaned as well as the connecting sewer lines flushed-out as a preventative maintenance measure in order to prevent further flooding issues.

Mr. Glenn Fralic, #404 Sandhamn Private noted that he didn't get asked about this but it was because he hadn't experienced any problems.

- We had 25 window well covers bought and installed last summer to prevent flooding issues as was explained why this was necessary during last year's AGM.
- Recycling black boxes for paper had been purchased and put under each of the three community mailboxes in order to keep the ground around that area litter-free but unfortunately, we had seen garbage also get dumped in them. It was suggested that we could label the black boxes, 'paper only' but the Board was told it was kids walking by that dump their garbage in there and this was difficult to control.
- We had to repair some garage roofs that had some major water leaks; the water leaks were damaging the inside of the garage ceiling and walls.
- As was discussed at our AGM last year, all the eavestroughs would be cleaned annually by the Corporation as a preventative maintenance measure but to keep in mind the installation of eavestroughs would still be the owner's responsibility; the eavestroughs were cleaned last Fall.
- The fire hydrants had been neglected through the years and they needed some restorative work in order to bring them up-to-code; this was done this past fall. Ms. Janice Forsythe, #490 Sandhamn Private heard the same thing when she had been on the Board and apparently they were fixed. Ms. Wu noted that the Board had been told that the codes had changed and therefore needed to be kept up annually.
- The **Rules and Regulations** were updated again by the Board this winter in order to reflect what was current and/or to ensure an efficient running of the Corporation. The following were the regulations that were added and/or were updated:
 - # 16 *The installation of eavestroughs is the Unit Owner's responsibility; however, the Corporation will be responsible for the cleaning of all the eavestroughs on an annual basis for preventative maintenance.*
 - # 34 *Unit Owners and Tenants are not allowed to park in the designated "Visitors Parking" lots at any time during the day or night.*
 - # 35 *Specific written permission from the Board is required for visitors using the "Visitors Parking" lots for any overnight parking. Any vehicle(s) not conforming to this regulation will be towed at the owner's risk and expense without notice.*
 - # 46 *It is highly recommended that Unit Owners install carbon monoxide detectors in their units for health and safety reasons.*
 - # 55 *After a new Board of Directors have been elected at an AGM, a member from the previous Board of Directors will attend the first three (3) Board meetings following the AGM and, if needed, be available as a resource person throughout the year (non-voting member).*
- Some patio doors had to be replaced last summer/early Fall for safety reasons on account of the extremely poor shape they were in.
- As much of the repairs were done as possible before winter that were identified during 2010's Spring's Walk-around Inspection while our budget guidelines were kept in mind. The repairs concerning health and safety issues that didn't get done were currently being completed now. As well, the Board just completed this year's Spring Walk-around Inspection last week and the two major issues that we needed to do this year was to change the rest of the patio doors as well as some of the shingles on the garage roofs and/or front porch roofs; some of these were in very bad shape.
- Other minor items were the parging on a lot of houses needed to be repaired except

for a couple that had holes right through into the inside of the garages (these would need to be patched immediately), holes in the asphalt in some of the driveways, still a few satellite dishes on the back that were in illegal spots that needed to be removed as well as a number of houses that had a lot of trash, dead wood or trees in the back that needed to be removed for safety reasons. Some of the walkways, had patio stones that needed to be leveled for health and safety reasons.

- Our Reserve Fund Study needed to be updated in 2011; the Board had decided to use engineers this time to do the study. The engineer was onsite last Friday afternoon. It was advised that the two major issues were the patio doors that didn't get replaced last year would need to be replaced this year. The engineer also noted that shingles on some of the garage roofs and/or front porch roof would need to be replaced due to the poor shape they were in. The Board would be reviewing the reserve fund study in more detail once received from the engineer.
- A reminder: All relevant documents such as CCC 276's Declaration, Bylaws, Rule and Regulations, Annual Budget, template for Overnight Parking Permit, past and current Updates from the Board of Directors as well as a link to get the *Condominium Act* were available on the website www.condogroup.ca for your convenience.

10. New Business

10.1 To increase the condominium fees to \$240.00 beginning January 2012.

- Ms. Wu noted that this represented an increase of about \$10.00 and was a large result due to the HST tax and the City's increased cost for water usage.
- Mr. Dimitry Durand, #413 Sandhamn Private asked what the annual cost of water was, as he would request that the idea of water meters be again considered. The water budget came in at \$52,675. It was reiterated that the suggestion of individual water meters still presented a number of problems (i.e. the cost to the condominium of such an endeavour, the workload associated with billing individual units and the lack of infrastructure presently in place).
- The Board would continue to monitor the situation to see if it could be feasible.

10.2 Suggestion to decrease junk mail

- A lot of junk mail was received in the condominium and presented problems with unwanted garbage throughout the condominium. The Board had been told that Canada Post was paid (20% revenue) to place this junk mail in citizens mailboxes.
- It was suggested that should owners/tenants not want to receive these flyers, they should go to www.reddot.ca and fill out a form to request that no junk mail/flyers be delivered to their Canada Post address.
- You were also able to purchase stickers at *Arbour*, an environmental store in the Glebe and place them on the mailbox beside your front door stating that you did not want flyers. The collective mailboxes were in the federal jurisdiction and these stickers could not be used here and the process outlined on the website www.reddot.ca had to be followed, while the junk mail received in the mailboxes outside our front doors was under the City of Ottawa's jurisdiction.

10.3 Use of pesticides

- There was a Provincial Bylaw that stated that insecticides and/or pesticide were banned and could not be used.
- Ms. Wu wished to remind homeowners that the following products were banned: Roundup / Weed n Feed / 2-4-D / Mecoprop / Dicamba & All as well as other restricted banned products that could be found on the Ministry of the Environment's website.
- The President reminded everyone that the common elements were the legal responsibility of CCC 276 and individual homeowners were not permitted to use banned pesticides on these areas.
- Ms. Janice Forsythe, #490 Sandhamn Private noted that in some cases it was not accidental at all. The Board had decided that the Property Manager would write a letter to each homeowner that was using these banned pesticides. Ms. Wu noted that if environmental soil testing had to occur, the cost of such would be borne by the homeowner; these costs could range from between \$1,300 – \$1,500. There could also be additional costs if the condominium got ticketed by the Ministry of Environment; in this case, the homeowner would be responsible to pay for this fine as well.

10.4 Updating by-laws Section 6.04, *Election and Term*

- Unfortunately the necessary quorum of 40 homeowners in person attending tonight's meeting was not achieved and therefore this item could not be implemented.

10.5 Reserve fund study discussion

- Ms. Carol Wu briefly highlighted portions of the new reserve fund study that she just received a couple of hours ago from the engineer.
- The engineer remarked that the remaining sliding glass patio doors needed to be replaced as the patio doors had deteriorated.
- As well, two garage doors that didn't get changed 5 or 6 years ago needed to be attended to. The exact addresses were not known at this moment but would be included in the final draft of the reserve fund study.
- The engineer also recommended that the eavestrough system need to be altered and the installation of eavestroughs on the second floor at the front of the units be considered because the shingles were deteriorating at a faster rate than normal due to the rainwater damage.
- Garage roofs should be suitable for the next 4 or 5 years, but some would need minor maintenance to them.
- Ms. Emily Blinn, #417 Sandhamn Private asked if the study recommended an installment of the eavestroughs in the front, would that be the responsibility of the Corporation. The answer was yes.
- Ms. Janice, Forsythe, #490 Sandhamn Private asked that when the eavestroughs' work for the front was considered, could the Board let other homeowners know in order for those that didn't have eavestroughs would be able to get them at the same time. Hopefully, if more were purchased and installed we might be able to negotiate a better rate. Ms. Nina Muraviova, #494 Sandhamn Private had also agreed with this suggestion.
- Ms. Gloria Anderson, #497 Sandhamn Private asked that a notice be sent out to all homeowners indicating the cost, quotes, timing etc. for this work.

10.6 Other questions

- Ms. Nina Muraviova, #494 Sandhamn Private had asked when the street garage sale would occur. Unfortunately there had been no interest in a garage sale this spring and there was not one planned.
- Ms. Emily Blinn, #417 Sandhamn Private asked about two of her outside lights that were not working. Since these were the owner's responsibility, could they replace the light fixture with any fixture they wished? The Board of Directors said yes, they could replace the fixture with any style they wished. Ms. Betty Flack, #453 Sandhamn Private noted that the lights should be used regularly and everyone should be encouraged to turn on their outside lights.
- Ms. Janet Buske-Wichser, #501 Sandhamn Private inquired about the Japanese Lilac in the front of her unit and asked if it could be cut back. Yes, the Property Manager would follow-up with this.
- Ms. Susan Larocque, #499 Sandhamn Private said that she had a raccoon living under her front step. She would like it to be removed. The Property Manager would investigate this as she had seen dirt at the corner of her shed and it was becoming quite a concern to her.
- Mr. Dimitry Durand, #413 Sandhamn Private noted that with the summer coming there were a lot of cars that were driving very quickly throughout the property. Could speed bumps be installed to have them slow down? The Board of Directors would look into this and perhaps consider installing 'temporary' ones; the Property Manager had advised that in other condo developments where 'permanent' speed bumps were installed, this was ruining the asphalt at a rapid rate. It was also noted that if homeowners could look and report who was driving so fast, then the Property Manager could deal with them directly.
- Ms. Gloria Anderson, #497 Sandhamn Private asked about replacing garage doors and wondered how she would know if hers was replaced. If it was, she would have a different, newer styled door.
- Mr. Minh On, #474 Sandhamn Private stated that the sewer cleaning contractor came to his unit and couldn't clean the drain as the drain was too small and the one on the other side of the unit was actually dry walled over. Apparently this also occurred at the neighbour's house. The Property Manager would investigate this.
- Mr. Chris Saindon, #414 Sandhamn Private had inquired about the updating of the Bylaws and asked if a signed sheet could be accepted? No, the requirement was to have the quorum present at the meeting and not by proxy.
- Mr. Chris Dunn, #450 Sandhamn Private had a concern with the grass cutting and the fact that the large tractor was digging into his backyard and causing holes in his lawn. Could the contractor use other equipment to prevent this from happening? The Property Manager would follow-up with the landscaping contractor about this concern.
- The Property Manager noted that six large trees had fallen and needed to be removed. Would homeowners like them to be replaced? No one present had any concerns, but the Board indicated that they would discuss this while attempting to look at the most economical way to replace these trees.

11. Election of Three Directors Pursuant to Section 51(6) of the *Condominium Act*

It was noted by the President that all three members of the Board of Directors were at the end of their terms. She had made the decision to step down from the Board of Directors, while the two remaining members, Mr. Etkin and Mr. Savoie, had volunteered to run again for the Board. Therefore only one new Director was required. The President then opened up the floor to nominations.

Ms. Janice Forsythe, #490 Sandhamn Private motioned and Mr. Chris Dunn, #450 Sandhamn Private seconded to nominate Ms. Emily Blinn, #417 Sandhamn Private. Ms. Blinn in turn accepted the nomination.

The three Board members then briefly described their background and why they wanted to participate on the Board of Directors.

With no other nominations put forward, Ms. Janice Forsythe, #490 Sandhamn Private motioned and Mr. Glenn Fralic, #404 Sandhamn Private seconded to close the nominations to accept the slate of nominees.

There were no homeowners opposed to the motion, no abstentions; the motion was therefore carried unanimously. **CARRIED**

Ms. Betty Flack, #453 Sandhamn Private wished to thank Carol Wu for all her hard work over the past three years while she worked on the Board of Directors.

12. Forms

The Property Manager, Stefan Novak included forms in tonight's AGM package and wished to note their importance:

- Proxy forms were provided for tonight's meeting and were available for owners unable to attend the meeting. They referred to general matters discussed at the meeting and for the election process.
- It was the law in Ontario to have completed smoke detector forms indicating that each unit had functioning smoke alarms on every storey of each unit. Mr. Novak requested that the form be completed and returned to the Property Manager.
- The pre-authorized payment form allowed unit owners to have their condominium fees automatically paid from their bank accounts. If a unit owner preferred this option they simply needed to complete the form and return it to the Property Manager.
- The insurance certificate was provided for information only to homeowners.
- The unit owner information sheet was provided so homeowners could validate their owner information. It was requested that this form be completed and returned to the Property Manager.
- For units that were rented the 'Summary of Lease or Renewal Form' was required for the Property Manager. If tenants were in your unit, this form needed to be completed and returned to the Property Manager.

13. Termination of Meeting

There being no further general discussion and no further business to conduct, Mr. Chris Dunn, #450 Sandhamn Private motioned and Mr. Glenn Fralic, #404 Sandhamn Private seconded to terminate the Annual General Meeting of Carleton Condominium Corporation No. 276 at 8:29 p.m. **CARRIED**